



Dear Brian C,

In accordance to Government Code Section § 7922.525 a legal review of your request was completed. The following letter is in response to your request submitted under Reference # W013113-072526.

This letter responds to your California Public Records Act (“CPRA”) request dated July 25, 2026, in which you seek audit logs from the San Mateo Police Department’s Automated License Plate Reader (“ALPR”) system. Specifically, you have requested records reflecting searches conducted by an outside law enforcement agency accessing the Department’s ALPR data through the Flock Safety network sharing platform.

After careful review, the Department has determined that these records are exempt from disclosure for the reasons set forth below:

Investigatory Records Exemption and Investigative Files Exemption (Government Code § 7923.600).

The requested audit records reflect search activity conducted by a law enforcement agency in connection with criminal investigations. Each log entry documents the existence, timing, and nature of an investigative act by another agency, including the category of criminal offense under investigation and the time frame of the search. Disclosure of these records would reveal confidential investigative activity. These records are therefore exempt from disclosure as investigatory records compiled by a law enforcement agency for law enforcement purposes pursuant to Government Code section 7923.600.

In addition, the audit log entries at issue reflect the investigative decisions and activities of other law enforcement agencies, not those of the San Mateo Police Department. The Department is not the originating agency for these investigative records and is not in a position to assess whether disclosure would compromise another agency’s ongoing or pending investigations.

Public Interest Balancing Test (Government Code § 7922.000).

Even to the extent any portion of the requested records might not fall squarely within a categorical exemption, the Department withholds these records under the public interest balancing test set forth in Government Code section 7922.000. The audit logs contain a combination of data fields that, taken together, would allow identification of specific criminal investigations being conducted by specific agencies during specific time periods. The public interest served by nondisclosure — protecting the integrity of active and pending criminal investigations across multiple jurisdictions — clearly outweighs the public interest served by disclosure.

Official Information Privilege (Evidence Code § 1040).

The requested records constitute official information acquired by law enforcement personnel in confidence. Disclosure of the investigative search activity of other agencies would be against the public interest because there is a necessity for preserving the confidentiality of this information that outweighs the necessity for disclosure in the interest of justice. Revealing which agencies are searching for which categories of criminal activity, and when, would compromise investigative strategies and techniques across multiple law enforcement jurisdictions.